

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-17

SAMSUNG ELECTRONICS AMERICA, INC.,
Complainant,

v.

ORIENT OVERSEAS CONTAINER LINE, LIMITED AND OOCL
(EUROPE) LTD.
Respondents

JOINT STATUS REPORT 10 (June 2026)

Pursuant to 46 C.F.R. § 502.141(h), the March 23, 2026 Order Granting Joint Motion to Extend Deadlines and Third Amended Scheduling Order (the “Scheduling Order”), Samsung Electronics America, Inc. (“Complainant” or “SEA”), and Orient Overseas Container Line Limited, and OOCL (Europe) Limited (“Respondents” or “OOCL,” and collectively with SEA, the “Parties”), by their respective undersigned counsel, have conferred and submit this joint status report.¹

¹ Each Party has prepared its respective portion of this Joint Status Report. Accordingly, execution of this Report by a Party shall not be interpreted as agreement by that Party with statements made herein by the other Party.

Complainant – Samsung Electronics America, Inc.

1. DISCOVERY:

a. Current Status

SEA fully completed its production of documents and other discovery obligations as of November 24, 2025. To date, SEA has produced 240,155 documents comprising 1,058,752 pages.

OOCL asserts it has completed its production and discovery obligations, this time as of April 13, 2026, but agreed during the May 19, 2026 Status Conference to work with SEA on outstanding discovery production issues. OOCL has produced 209,795 documents consisting of 609,859 pages.

b. Discovery Overview (May 2026)

SEA has been reviewing OOCL's most recent April productions and tabulating additional missing documentation. On May 4, 2026, Judge Ambrow issued an Order Clarifying Briefing Deadlines and setting a status conference for May 19, 2026, for the parties to discuss remaining discovery issues.

On May 11, 2026, OOCL submitted a supplemental declaration by Mr. Carruth which indicated that OOCL was still searching and indexing its data.

On May 18, 2026, SEA sent OOCL a letter identifying outstanding deficiencies with respect to OOCL's production including incomplete email chains; unsearched email databases; and a lack of documentation from the named Respondents. The letter also flagged Mr. Carruth's supplemental declaration which indicates that OOCL is still reviewing its data, indicating that production was not complete. SEA requested clarification as to the status of this review and OOCL's further search of its documents and database. As of today, OOCL has not responded to this correspondence.

On May 19, 2026, the parties met with Judge Ambrow and agreed to continue to work together to resolve the remaining document production issues before considering additional motions to compel.

SEA intends to meet with OOCL to review the additional deficiencies identified in OOCL's production so that the parties can resolve the outstanding production issues between themselves. SEA will file a motion to compel if the parties are unable to reach a resolution on those issues.

2. MOTIONS UPDATE

a. Motion for Sanctions

On May 11, 2026, OOCL filed Respondents' Response to Complainant's Motion for Sanctions. On May 18, 2026, SEA filed Complainant's Reply in Support of its Motion for Sanctions. On May 19, 2026, Judge Ambrow advised during the status conference that he would be denying SEA's Motion for Sanctions, while expressly inviting SEA to file a motion to compel if unable to resolve the discovery issues with OOCL. Judge Ambrow directed the parties to clarify, in writing, the specific documents SEA contends remain outstanding. On May 21, 2026, Judge Ambrow issued his order denying SEA's Motion for Sanctions and affirmed he would consider a Motion to Compel once the parties attempted to resolve discovery concerns between themselves.

b. Appeal of SEA's Petition for Attorney's Fees

On May 5, 2026, OOCL filed Respondents' Response to the Appeal of Samsung Electronics America of the Order Denying its Petition for Attorneys' Fees. SEA's Appeal of the Order Denying its Petition for Attorney Fees now awaits a decision from the Commission.

3. MEDIATION

The parties engaged in a single day mediation on May 21, 2026.

4. Amended Schedule

SEA continues to seek additional information from OOCL, including container specific documents that remain missing from the production. While SEA is attempting to work with OOCL on obtaining these documents, additional time is needed to allow for production and review as the

Parties attempt to work this out among themselves. Further motions to compel may be necessary as well. The parties intend to submit a proposed Amended Schedule for this matter subsequent to their meeting on outstanding discovery matters.

Respondents - Orient Overseas Container Line Ltd. and OOCL (Europe) Ltd.

1. DISCOVERY

In JSR 9, OOCL reported that it had made two additional, supplemental productions after applying search terms discussed with and agreed upon by SEA. This resulted in OOCL production 10 (“PROD010”), comprised of 158,220 documents totaling 423,211 pages (Bates Range: OOCL_0077541 – OOCL_0500751). OOCL also searched its data base for every container number and bill of lading number contained in SEA's spreadsheet marked 24-17_SEA_00059845, resulting in OOCL production 11 (“PROD011”), comprised of 29,898 documents totaling 109,108 pages (Bates Range: OOCL_0500752 – OOCL_0609859). These searches were not limited by any date range or any other terms, other than a privilege screening, and no documents were withheld.

On May 18, 2026, several days before the mediation described below and the conference held by the Presiding Officer regarding SEA’s motion for discovery-related sanctions, SEA issued another deficiency letter claiming PROD010 and PROD011 contained documents which it claims were incomplete; identified generic distribution mailboxes which had not been searched; specified six interrogatories to which SEA has requested supplemental answers (Interrogatories Nos.1,3,10,12,16 & 17); and requested that the confidentiality designation of one document produced by OOCL be changed. OOCL believes its last productions were complete and responsive, and responded to SEA’s deficiency letter on June 1, 2026. Nevertheless, OOCL has agreed to participate in a meet & confer to discuss the few remaining discovery issues raised by SEA. As in

the past, OOCL will attempt to resolve discovery issues in good faith without intervention by the Presiding Officer.

On May 26, 2026, OOCL provided SEA with a list, consisting of eleven SEA witnesses, that OOCL wishes to depose and has requested SEA to confirm which of these individuals are employed by SEA and, as to those who are not, their last known addresses so that they may be subpoenaed.

The Parties also plan to meet to discuss the time that will be needed to complete the remaining discovery and anticipate that a joint motion amending the current schedule will be filed.

2. MOTIONS UPDATE

SEA filed a dispositive Motion for Sanctions on April 24, 2026 (“Motion”). As required by the Commission’s rules for dispositive motions, OOCL filed a response to the Motion on May 11, 2026. SEA filed its Reply on May 18, 2026. On May 21, 2026, the Presiding Officer issued an Order, denying SEA’s Motion.

3. MEDIATION

The Parties participated in settlement negotiations through the assistance of a mediator in New York on May 21, 2026. The Parties’ dispute has not settled but negotiations are ongoing.

Dated: June 1, 2026

Respectfully Submitted,

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CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing document by electronic mail upon the following persons/addresses:

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Dated: June 1, 2026

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